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How Do I File a Defamation and Insult Case Over Online Statements, and What Are the Penalties Under Egyptian Law?

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Many people ask us: “How do I file a defamation case?”, “How do I file an insult and defamation (sabb and qadhf) case?”, “What is the penalty for insult and defamation?”, and “What does Egyptian law say about insult and defamation?” They also ask: “How do I file a report with the Internet Crimes Police?”, “How do I file a report online?”, “How do I file an electronic report?”, and “How do I file a report with the Telecommunications Police?” To answer them: the case begins with a complaint (shakwa) or report that you file, personally or through a special attorney, with the Internet Crimes Police (the Ministry of Interior's General Department for Combating Information Technology Crimes), the Public Prosecution, or a police station, within three months of the day you learn of the offense and of who committed it, supported by digital evidence (screenshots and links). The Public Prosecution then investigates and may refer the accused to the Misdemeanor Court; alternatively, you may bring a direct misdemeanor action yourself. Under the Penal Code, the penalty is a fine of EGP 5,000 to 15,000 for defamation (qadhf) and EGP 2,000 to 10,000 for insult (sabb). It rises to imprisonment where the act attacks a person's honor or harms the reputation of families, and may reach imprisonment of two to five years and a fine of EGP 100,000 to 300,000 where the Information Technology Crimes Law No. 175 of 2018 applies.

First: Is “defamation” a crime? What is the difference between insult and defamation?

“Defamation” in the everyday sense (tashheer) is not an independent offense under Egyptian law. The law instead punishes the conduct people mean by it under more precise descriptions, chiefly criminal defamation (qadhf) and insult (sabb) under the Penal Code, and violation of privacy and misuse of personal data under the Information Technology Crimes Law No. 175 of 2018.

Point of comparison	Defamation (Qadhf)	Insult (Sabb)
Definition	Imputing a specific act to a person which, if true, would warrant his punishment or the contempt of his fellow citizens (Penal Code, Art. 302)	Any expression that impugns a person's honor or reputation without imputing a specific act (Penal Code, Art. 306)
Example	"So-and-so bribed the official to obtain the license"	A demeaning description of a person without mentioning any specific act
Elements	Imputation of a specific act + publicity + criminal intent	Demeaning expression + publicity + criminal intent

Neither offense exists without publicity, meaning that the act is committed by one of the means set out in Article 171 of the Penal Code, including writing, images, and symbols made available to a number of people without distinction. The Court of Cassation has held that publicity in written defamation requires two elements: distribution of the writing to a number of people without distinction, and the offender's intent to disseminate it (Appeal No. 11632 of Judicial Year 60, session of 15 December 1996). The result differs, therefore, between a post open to the public on a public page or group and a private message seen by no one but you: the former is presumptively public, while the latter may not satisfy publicity, although it may qualify under another description, such as harassment through misuse of telecommunications equipment (Telecommunications Regulation Law No. 10 of 2003, Art. 76(2)).

As to the mental element, general criminal intent suffices. The offender need not have intended to harm you, and good faith, meaning a belief in the truth of what was imputed, does not negate intent (Appeal No. 8334 of Judicial Year 61, session of 22 February 1998). By way of exception, a good-faith criticism of the acts of a public official or a person charged with a public service, within the limits of his duties, is not defamation where the accused proves the truth of every act he imputed (Penal Code, Art. 302, para. 2).

Second: Penalties for insult, defamation, and online smear campaigns

Several provisions may govern a single incident, depending on what was published and how. Where they overlap, the more severe provision applies, since the Information Technology Crimes Law opens its penalties

with the phrase “without prejudice to any more severe penalty provided for in the Penal Code or any other law” (Art. 12). The penalties in force at the time of review are as follows:

Provision	Offense	Penalty
Penal Code, Art. 303	Public defamation	Fine of EGP 5,000 to 15,000
Penal Code, Art. 303(2)	Defamation of a public official or a person charged with a public service by reason of the performance of his duties	Fine of EGP 10,000 to 20,000
Penal Code, Art. 306	Public insult	Fine of EGP 2,000 to 10,000
Penal Code, Art. 307	Defamation or insult committed through publication in newspapers or print media	The minimum and maximum fines are doubled
Penal Code, Art. 308	Where the act attacks a person's honor or harms the reputation of families	Imprisonment and a fine together, with imprisonment of not less than six months
Penal Code, Art. 308 bis	Defamation or insult by telephone	The penalty under Arts. 303, 306 and 308, as the case may be
Law No. 175 of 2018, Art. 24	Creating a fake e-mail account, website, or private account and falsely attributing it to a person	Imprisonment of not less than three months and a fine of EGP 10,000 to 30,000, or either; if it is used in a manner that harms the person to whom it is attributed, imprisonment of not less than one year and a fine of EGP 50,000 to 200,000, or either
Law No. 175 of 2018, Art. 25	Publishing information, news, or images that violate a person's privacy without consent, whether true or false, or violating the sanctity of private life	Imprisonment of not less than six months and a fine of EGP 50,000 to 100,000, or either
Law No. 175 of 2018, Art. 26	Using a software program or information technology to process another person's personal data in order to link it to indecent content or to present it in a way that impugns his reputation or honor	Imprisonment of two to five years and a fine of EGP 100,000 to 300,000, or either

On 1 September 2025, the Supreme Constitutional Court dismissed a challenge to the constitutionality of Articles 302, 303, 306 and 307 of the Penal Code as they relate to the penalties for insult and defamation committed through publication. It affirmed that freedom of opinion and expression is not exercised by encroaching on human dignity or assaulting private life, and that criminalizing public defamation and insult of private individuals is consistent with the Constitution.

In addition to the criminal penalty, the injured party may claim compensation for material and moral damage on the basis of liability for harmful acts (Civil Code, Art. 163), either before the criminal court as an adjunct to the criminal action or before the civil court.

A note on the texts: some websites circulate proposals, made in the past, to toughen the penalty for insult and defamation by imprisonment with hard labor, and bills to amend Articles 25 and 26 of Law No. 175 of 2018. This article relies only on the texts in force at the time of review. The procedures below are likewise based on the Criminal Procedure Code currently in force (Law No. 150 of 1950); the new Criminal Procedure Code, Law No. 174 of 2025, has been postponed until 1 October 2027 and does not apply to your report now.

Third: How to file the case, step by step

1. Preserve the evidence first. Take screenshots showing the full text with the account name, the post link, the date, and the time; save the links; do not delete the conversation; and do not respond in a way that exposes you to liability. If the post may be deleted, enlist someone who can view it to serve as a witness.
2. Identify the person you are complaining against as far as you can: the account name and link, and the phone number or e-mail address. An anonymous account does not prevent you from proceeding, since the investigating authority may order the service provider to hand over user data (Law No. 175 of 2018, Art. 6).
3. File the complaint or report with any of the following: the Internet Crimes Police (the General Department for Combating Information Technology Crimes at the Ministry of Interior), in person or through the 108 hotline, and you can track your report through the Ministry's portal (acca.moi.gov.eg) after signing in through its digital verification platform; the Public Prosecution, through the electronic report service on its

official website or in person; or a police station. The complaint may be oral or written, from you or from your special attorney (Criminal Procedure Code, Art. 3).

4. Investigation and technical examination. The Public Prosecution hears your statement and may order the seizure and examination of the digital evidence and request account data from the service provider. Evidence derived from electronic media carries the weight of physical criminal evidence where the technical conditions in the executive regulations are met (Law No. 175 of 2018, Art. 11).
5. Disposition of the case. The Public Prosecution either refers the accused to the competent court or archives the file. Where you filed your complaint within the time limit, your right to a direct action remains intact even if the investigation or its disposition is delayed (Appeal No. 48182 of Judicial Year 59, session of 9 January 1996).
6. The direct misdemeanor action. The injured party may set the case in motion directly before the Misdemeanor Court by serving the accused with a petition setting out the facts, the applicable provisions, and a request for punishment and provisional compensation, without waiting for the Public Prosecution, and within the same three months. No special power of attorney is required for it; that is required only for filing a complaint (Appeal No. 15474 of Judicial Year 60, session of 11 November 1997).
7. Waiver and reconciliation. The complainant may withdraw the complaint at any time until a final judgment is issued, in which case the criminal action lapses (Criminal Procedure Code, Art. 10). Reconciliation with the victim may be recorded in certain offenses under Law No. 175 of 2018, including Article 26 (Art. 42).

Fourth: Required documents

- The complainant's national ID card.
- Screenshots, printed and in electronic form, showing the text, the account name, the link, the date, and the time.
- Links to the posts, pages, or groups, and the phone numbers or e-mail addresses from which the statements originated.
- Proof that the statements refer to the complainant, if his name is not stated expressly.

- In the case of an impersonated account: proof that the account is not yours, and the details of your genuine account.
- The names of any witnesses who saw the post, where possible.
- A special power of attorney if a lawyer will file the complaint on your behalf (Criminal Procedure Code, Art. 3).

Fifth: Time limits

Period	Effect	Authority
Three months from the day of learning of the offense and of its perpetrator	The complaint is not accepted thereafter for the insult and defamation offenses under Penal Code Arts. 303, 306, 307 and 308	Criminal Procedure Code, Art. 3; Appeal No. 14752 of Judicial Year 62, session of 12 February 1995
180 days	The period for which a service provider retains the information system log and user data; prompt reporting therefore preserves the evidence	Law No. 175 of 2018, Art. 2
Three years	The criminal action in misdemeanors lapses by the passage of time	Criminal Procedure Code, Art. 15
Three years	A claim for compensation for a harmful act is time-barred from the day the injured party learns of the damage and of the person responsible	Civil Code, Art. 172

Sixth: Court and government fees

There is no fee for filing a report or complaint with the Internet Crimes Police, the Public Prosecution, or the police. A direct misdemeanor action, however, incurs court fees calculated on the provisional compensation claimed under the Judicial Fees Law, in addition to the costs of serving the accused. The court clerk's office determines them when the case is registered, so inquire before filing, since they vary with the amount claimed. These fees do not include attorney's fees.

Seventh: Common mistakes that forfeit your right

- Letting the three months pass; they run from the day you learn of the offense and of who committed it, not from the day of publication.
- Relying on a cropped image that does not show the link, the date, or the account name.
- Deleting the conversation or closing the account before documenting what happened.
- Replying with insults or publicizing the incident to shame the offender, which turns you from victim into accused.
- Confusing the complaint with the direct misdemeanor action: a complaint is filed with the Public Prosecution or a judicial police officer, whereas a direct action is brought before the court by serving the accused.
- Describing the matter only as “defamation” in the complaint without specifying the legal characterization (defamation, insult, publication violating privacy, or fake account), which weakens the investigation.
- Overlooking that publicity is an element of insult and defamation; a report about a private message may not succeed on that characterization alone.

Eighth: When do you need a lawyer?

- Where the account is anonymous or the offender is outside Egypt; Law No. 175 of 2018 applies to certain acts committed by non-Egyptians abroad where the victim is Egyptian and the act is punishable in the state where it occurred (Art. 3).
- Where the incident involves private images or data, or blackmail (Arts. 25 and 26).
- To determine the most precise legal characterization, to choose between a complaint and a direct action, and to draft the petition properly.
- To claim appropriate compensation for material and moral damage.
- If you are the accused, to build the defense: absence of publicity, good faith, fair criticism, and expiry of the complaint period.

You can book a legal consultation with one of the firm's lawyers through our website, hamlf.com, where the consultation fee and duration are shown at the time of booking.

A Question Worth Knowing the Answer To

Can I file an insult and defamation case if more than three months have passed since the post?

Answer: The three-month period runs from the day you learn of the offense and of who committed it, not from the day of publication; if you learned of it later, the period starts from your knowledge. If three months pass from that day without a complaint, your right to set the criminal action in motion for the insult and defamation offenses under Penal Code Arts. 303, 306, 307 and 308 lapses (Criminal Procedure Code, Art. 3). Another characterization that is not subject to the complaint requirement may still be considered, such as the offenses under Law No. 175 of 2018 (including Arts. 25 and 26) if the facts fit them, as may a civil claim for compensation unless it is time-barred (Civil Code, Art. 172). This varies from case to case, so do not delay.

If you face a problem of this kind, whether as the injured party or as the accused, do not hesitate to contact us or visit our office. The experience of our team in these cases saves you time and effort, puts your rights on the right track from the very first step, and gives you the reassurance that your file is in hands that know how to protect it.

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